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VIA EMAIL

The Honorable Scott S. Harris, Clerk of the Court
Supreme Court of the United States, One First Street, N.E., Washington, D.C. 20543
Attn: Robert Meek, Emergency Applications Attorney; rmeek@supremecourt.gov

Re: Copeland v. Tarrant County, Texas, et al., No. 25A1368
Rule 22.4 Renewal Directed to Justice Sonia Sotomayor

Dear Mr. Harris:

Pursuant to Supreme Court Rule 22.4, I renew my Emergency Application for an Injunction Pending Appeal, denied by Justice Alito on June 11, 2026, and designate Justice Sonia Sotomayor to hear the renewed application. (Please note my updated address above.)

I recognize that a renewed application is ordinarily not favored. I renew because circumstances arising since June 11 demonstrate that the precise harm the application sought to prevent is now occurring: compulsory proceedings, dismissals, sanctions exposure, and obstruction of appellate review continue to attach before any court has decided whether I was afforded a lawful and accessible route to participate.

The underlying right is not novel. I am a person with a disability formally adjudicated as such by the Social Security Administration (fully favorable decision, April 2026; onset June 2023). Title II protects meaningful access to the courts, and *Tennessee v. Lane* confirms the fundamental importance of that protection where access to the courts is at stake. The question pending in the Fifth Circuit is whether that access exists in practice where the responsible entities have identified no accessible pathway — the administrative structure Title II's regulations require — through which court-user accommodations may be requested, decided, and reviewed. Judge Haynes recorded, both on the panel's denial and on denial of reconsideration, that she would grant temporary relief and carry the issue with the case for the merits panel. Since the denial:

- On June 11, the district court denied me leave to proceed *in forma pauperis* on appeal and certified the appeal not taken in good faith, exposing my pending Fifth Circuit appeal to dismissal for nonpayment before merits review. The same court had granted me *in forma pauperis* status in two related actions weeks earlier (May 14 and June 2, 2026). I timely filed a protective Rule 24(a)(5) motion on June 14; a Fifth Circuit clerk confirmed on June 30 that it had been received but not yet processed or docketed, while the July 13 fee deadline continues to run.

- In a Tarrant County action, I did not know until the morning of the pre-trial hearing whether my retained counsel would appear; he did not, and did not inform the court. Because the court had instructed me (May 20) not to contact it directly while I remained represented, and because I was too ill to proceed as my treating provider documented, I could neither step in nor report that I had been left without counsel. In my absence, the court struck my pleadings and dismissed the case with prejudice. A hearing on sanctions and contempt is set for July 17, 2026 — the terms of which I cannot learn, because notices go to the counsel who failed to appear.
- In a Tarrant County eviction proceeding, I received no notice of the July 1 setting and learned of it only while compiling docket records; the court denied my motion to continue even though I had not received the pleadings, was medically unable to participate, and had submitted an accommodation request through the County's online form with no written determination. Although I vacated the property on May 22, the proceeding threatens further monetary and procedural consequences before my defenses and counterclaims can be heard.

This is the closed loop the application described: the missing access structure prevents meaningful participation; the resulting losses are treated as final; and the avenues for review are themselves foreclosed — clerks continue to reject my notices of appeal under a prefiling restriction entered in proceedings that I allege lacked the accommodations necessary for meaningful participation. The State cannot use the consequences of inaccessible proceedings to foreclose review of the accessibility failure itself.

The question is not whether I should prevail in every underlying case. It is whether I may be made to lose them before any court decides whether I was given a lawful way to participate.

A right without a route is not access.

The consequences described above are concrete, imminent, and irreparable, and the question underlying them — whether a State may impose binding legal consequences through proceedings that afford no accessible, reviewable way to seek accommodation — is important and likely to recur. I therefore respectfully request the narrowest temporary relief necessary to preserve meaningful appellate review and this Court's prospective jurisdiction while my Fifth Circuit appeal (No. 26-10389) remains pending — at minimum, that no new consequence — whether by compelled participation, sanction, enforcement, filing preclusion, or fee-based dismissal — attach through the challenged process before an accessible, reviewable accommodation pathway is identified. In the alternative, I request referral to the full Court.

Proof of service accompanies this letter as a separate declaration. Consistent with the Clerk's guidance that only a brief letter is required, I have not attached an appendix; documentation of each development described above is available and will be provided at the Court's request.

Respectfully submitted,



Kathryn Copeland
Pro Se Applicant